

2:00 PM

LINE 1

22-CIV-00303 AETNA INC VS GILEAD SCIENCES, INC

AETNA INC
GILEAD SCIENCES, INC

DANIEL A. SASSE
MICHAEL J SHIPLEY

DEFENDANTS' MOTION TO DETERMINE APPLICABLE LAW

TENTATIVE RULING:

As confirmed in emails with the parties, the court continues the hearing to August 31, 2026 at 9:30 a.m. The parties are to provide their own court reporter.

2:00 PM

LINE 2

23-CIV-02087

ALIYA D'OYEN VS. JAMI J JAMISON, ET AL.

ALIYA D'OYEN
JAMI J JAMISON

KENNETH SELIGSON
CHARLES S PAINTER

DEFENDANTS' MOTION FOR SUMMARY JUDGMENT AND/OR SUMMARY ADJUDICATION

TENTATIVE RULING:

On the Motion for Summary Judgment and/or Summary Adjudication by Defendants James Ford, Inc., Jamie J Jamison aka Jami Stevens and Robert Jamison, incorrectly sued as Bob Jamo ("Defendants"), to the Complaint by Plaintiff Aliya D'Oyen ("Plaintiff"), the court rules as follows:

As an initial matter, the court notes that Defendants' Memorandum is unsigned. (See Defendants' Memorandum filed May 22, 2026.) "An unsigned paper shall be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party." (Code Civ. Proc., § 128.7, subd. (a).) Since this is a curable defect (*Walton v. Victor Valley Community College Dist.* (2026) 119 Cal.App.5th 1164, 1170, as modified on denial of reh'g (Apr. 14, 2026), review denied (July. 22, 2026)), Defense counsel shall file and serve a signed memorandum by 11:00 a.m. on August 25, 2026 and email a copy to Department 4.

Defendants' separate statement contains numerous evidentiary facts rather than material facts

Defendants improperly include numerous evidentiary facts rather than material facts in their separate statement in contravention of California Rules of Court, rule 3.1350(d)(2) ["The separate statement should include only material facts...."]. "The facts alleged or tendered in a summary judgment proceeding perform two different functions. As material facts they measure whether the plaintiff has alleged a cause of action. As evidentiary facts they establish whether the material facts have been proved." (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 884; *id.* at p. 884, fn. 6.) Courts can use their inherent power to strike undisputed facts that do not comply with the statutory requirements (*Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 499–500 ; *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 106), but they do not have to strike them. (*Young v. RemX Specialty Staffing* (2023) 91 Cal.App.5th 427, 431.) The court does not exercise its discretion to strike the facts. However, it relies upon the rule that if one fact is properly disputed, summary judgment and/or summary adjudication is denied. (See Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* § 10:95.1 (TRG June 2026 update) ("Include only those facts which are *truly material* to the claims or defenses involved because the separate statement effectively *concedes* the materiality of whatever facts are included." [emphasis in original].))
